

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 27, 2026
8:30 AM/1:30 PM

17. MARIYA VYCHRESTOVA V. MARK GARCIA

26FL0514

Petitioner filed a Request for Order (RFO) on June 3, 2026, requesting child custody and parenting plan orders, as well as orders for child support and alcohol and drug testing. Petitioner concurrently filed an Income and Expense Declaration. The parties were referred to Child Custody Recommending Counseling (CCRC) for an appointment on July 16, 2026, and a review hearing on August 27, 2026. Respondent was mail served with Notice and Acknowledgment of Receipt on July 1, 2026.

Both parties attended CCRC on July 16, 2026. It appears from the CCRC report that parties reached a full agreement. A report with the parties' agreement was prepared on July 16, 2026, and mailed to the parties on July 17th.

Respondent filed an Income and Expense Declaration and a Response to the Petition for Custody and Support on July 29, 2026. Petitioner was served by mail on July 31, 2026.

The court has read and considered the filings as outlined above. The court adopts the agreements as set forth in the July 16th CCRC report as they are in the best interest of the minor.

Utilizing the figures from the parties' Income and Expense Declarations with a 50% time share, the court finds guideline child support to be \$407 per month payable from Respondent to Petitioner (see attached X-spouse). The court orders Respondent to pay Petitioner \$407 per month as and for guideline child support effective July 1, 2026, and payable on the first of each month until further order of the court or termination by operation of law.

The court finds this order results in an arrears balance of \$814 for the months of July and August. The court orders Respondent to pay Petitioner \$203.50 per month as and for arrears beginning September 15, 2026, and payable on the 15th of each month until paid in full (approximately four months). If there is any missed or late payment the full amount is due and owing with legal interest.

In addition to the foregoing monthly support payments, the parties are ordered to equally share in any uninsured medical care costs for the minor, childcare costs when such costs are incurred as a result of employment or necessary education for employment, and agreed upon extracurricular activities. The parties are ordered to follow the procedures as set forth in the attached FL-192.

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Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #17: THE COURT ADOPTS THE AGREEMENTS AS SET FORTH IN THE JULY 16TH CCRC REPORT AS THEY ARE IN THE BEST INTEREST OF THE MINOR.

UTILIZING THE FIGURES FROM THE PARTIES' INCOME AND EXPENSE DECLARATIONS WITH A 50% TIME SHARE, THE COURT FINDS GUIDELINE CHILD SUPPORT TO BE \$407 PER MONTH PAYABLE FROM RESPONDENT TO PETITIONER (SEE ATTACHED X-SPOUSE). THE COURT ORDERS RESPONDENT TO PAY PETITIONER \$407 PER MONTH AS AND FOR GUIDELINE CHILD SUPPORT EFFECTIVE JULY 1, 2026, AND PAYABLE ON THE FIRST OF EACH MONTH UNTIL FURTHER ORDER OF THE COURT OR TERMINATION BY OPERATION OF LAW.

THE COURT FINDS THIS ORDER RESULTS IN AN ARREARS BALANCE OF \$814 FOR THE MONTHS OF JULY AND AUGUST. THE COURT ORDERS RESPONDENT TO PAY PETITIONER \$203.50 PER MONTH AS AN FOR ARREARS BEGINNING SEPTEMBER 15, 2026, AND PAYABLE ON THE 15TH OF EACH MONTH UNTIL PAID IN FULL (APPROXIMATELY FOUR MONTHS). IF THERE IS ANY MISSED OR LATE PAYMENT THE FULL AMOUNT IS DUE AND OWING WITH LEGAL INTEREST.

IN ADDITION TO THE FOREGOING MONTHLY SUPPORT PAYMENTS, THE PARTIES ARE ORDERED TO EQUALLY SHARE IN ANY UNINSURED MEDICAL CARE COSTS FOR THE MINOR, CHILDCARE COSTS WHEN SUCH COSTS ARE INCURRED AS A RESULT OF EMPLOYMENT OR NECESSARY EDUCATION FOR EMPLOYMENT, AND AGREED UPON EXTRACURRICULAR ACTIVITIES. THE PARTIES ARE ORDERED TO FOLLOW THE PROCEDURES AS SET FORTH IN THE ATTACHED FL-192.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF

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A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07

2026 Guideline Summary Monthly Figures

Fixed Shares

	Father	Mother
Number of children	0	1
Percent time with NCP	49.99%	0.00%
Filing status	SINGLE HH/MLA	
Number of exemptions	1	2
Wages and salary	8640	4538
Self employed income	0	0
Other taxable income	0	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	446	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	211	0
Other medical expenses	0	0
Property tax expenses	567	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	0	0

Monthly Figures**2026****Nets (adjusted)**

Father	6251
Mother	4042
Total	10293
Support	
Addons	0
Guideln CS	407
Alameda SS	0
Total	407

Cash Flow

Combined net spendable 10293

Father

Payment cost/benefit	-407
Net spendable income	5844
Federal income tax	1067
Federal employment tax	661
State income tax	337
State employment tax	112
Total taxes	2178
Federal filing status	SINGLE
State filing status	SINGLE

Mother

Payment cost/benefit	407
Net spendable income	4449
Federal income tax	90
Federal employment tax	347
State income tax	0
State employment tax	59
Total taxes	496
Federal filing status	HH/MLA
State filing status	HH/MLA

FC 4055 checking: **ON****Per Child Information**

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		50 - 50	0	0	0 Father	407 Father	407 Father
	0000-00-00	49 - 51	0	0	0 Father	407 Father	407 Father

Superior Court of California
County of El Dorado